

Non-Disclosure Agreement

Effective Date

___/___/___

Expiration Date

___/___/___

PARTIES

This Mutual Non-Disclosure Agreement ("MNDA") is made pursuant to the Master Service Agreement ("MSA") dated _____ between Revital Productions ("Service Provider") and _____ ("Client"). This MNDA supplements and is incorporated by reference into the MSA, and all defined terms in the MSA shall carry the same meaning herein unless otherwise stated.

This Mutual Non-Disclosure Agreement (hereinafter referred to as the "Agreement") is entered into on _____ (the "Effective Date"), by _____, with an address of _____ (hereinafter referred to as the "Party B") and Revital Productions (hereinafter referred to as the "Party A") (collectively referred to as the "Parties").

In the event of any conflict between this MNDA and the MSA, the terms of the MSA shall control.

PURPOSE

The Parties wish to explore a potential business relationship and may disclose confidential and proprietary information to each other for the purpose of (e.g. evaluating a potential client engagement, partnership, collaboration, etc.) ("Purpose"). This Agreement governs the disclosure and protection of such information.

CONFIDENTIAL INFORMATION

"Confidential Information" means any non-public information disclosed by one Party to the other, whether orally, in writing, or in any other form, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and circumstances or disclosure. This includes but is not limited to: business strategies, pricing, financial data, client lists, marketing plans, creative concepts, proprietary processes, technical data, and personnel information.

OBLIGATIONS

Each Party agrees to:

1. Hold all Confidential Information of the other Party in strict confidence
2. Not disclose Confidential Information to any third party without prior written consent
3. Use Confidential Information solely for the Purpose stated above
4. Protect Confidential Information with at least the same degree of care used to protect its own confidential information, but in no event less than reasonable care
5. Limit access to Confidential Information to employees and contractors who have a need to know and are bound by confidentiality obligations at least as protective as this Agreement

EXCLUSIONS

Confidential Information does not include information that:

1. Is or becomes publicly available through no act of the Party B
2. Was already known to the Receiving Party prior to disclosure
3. Is independently developed by the Receiving Party without use of Confidential Information
4. Is disclosed with the prior written approval of the Disclosing Party
5. Is required to be disclosed by law, regulation, or court order (with prompt notice to the Disclosing Party where permitted).

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TERM

This Agreement shall be effective as of the date signed and shall remain in effect for three (3) years from the Effective Date. Confidentiality obligations shall survive termination of this Agreement.

RETURN OF INFORMATION

Upon written request, each Party shall promptly return or destroy all Confidential Information received from the other Party and certify in writing that it has done so.

NO LICENSE

Nothing in this Agreement grants either Party any license, right, or interest in the other Party's Confidential Information, intellectual property, or trade secrets beyond what is necessary to fulfill the Purpose.

GOVERNING LAW

This Agreement shall be governed by the laws of the State of Louisiana. Any disputes shall be resolved in the courts of _____, Louisiana.

SIGNATURES

CLIENT

REVITAL PRODUCTIONS

Company Name

Signature

Signature

Printed Name

Printed Name

Date

Title

Date